

Sachchidanand v. State of U.P.

Allahabad High Court · Division Bench · 1 June 2016 · WRIT - C No. 27483 of 2016 · **Writ dismissed; petitioner may apply under Clause 4.4.**

HEADNOTE

Mandamus for a tube-well connection will not issue where the petitioner has not applied on the prescribed form (Annexure 4.1) with registration-cum-processing fee and documents under Clause 4.4 of the U.P. Electricity Supply Code, 2005. A plain request is not a Clause 4.4 application. Once a proper application is moved, Clause 4.7 supplies the processing timeframe. Writ dismissed without prejudice to applying under Clause 4.4.

FACTUAL SUMMARY

Sachchidanand sought a mandamus directing respondent no. 4 to give an electric connection for a tube-well pump. The pleadings and annexures showed he had never submitted a prescribed application for a fresh connection. He had instead made a plain request, without the registration-cum-processing fee and documents required for a new connection. The Division Bench examined those papers and disposed of the writ on that footing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new-connection-application

HOLDING

A writ of mandamus directing a new electric connection will not issue where the applicant has not moved a prescribed-form application (Annexure 4.1) complete in all respects, with the registration-cum-processing fee and requisite documents, under Clause 4.4; a plain request for connection is not compliance, and dismissal of the writ does not bar a subsequent Clause 4.4 application, after which Clause 4.7 governs the processing timeframe. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF ENTITLEMENT TO THE TUBE-WELL CONNECTION

The Court did not decide whether a connection should be granted; it refused mandamus for want of a prescribed Clause 4.4 application and left the petitioner free to apply in that form. ¶ 1